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24-CIV-01936

ITRIA VENTURES LLC, VS. MEIMEI LI, ET AL

ITRIA VENTURES LLC,
MEIMEI LI

JASON S. TAKENOUCHI

DEFENDANT SF GLASS CLEANING SOLUTIONS' MOTION TO SET ASIDE DEFAULT GRANTING OF MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING:

For the reasons stated below, Plaintiff Itria Ventures LLC's unopposed motion for summary adjudication of the third cause of action for breach of contract against Defendant SF Glass Cleaning Solutions is **GRANTED**.

The hearing on this motion was initially set for December 18, 2025. Defendant's counsel appeared at the hearing and explained that he had intended to file an opposition but had mistakenly calendared a later due date. (Minute Order, Dec. 18, 2025.) The Court continued the hearing to June 18, 2026, and granted Defendant leave to file an opposition and Plaintiff leave to file a reply. (Ibid.) Defendant again failed to file any opposition, which was due by May 29, 2026. (Code Civ. Proc., § 437c, subd. (b)(2).) Accordingly, Plaintiff's motion remains unopposed.

LEGAL STANDARD

A party may move for summary judgment if it is contended that the action has no merit or that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment shall be granted if all papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Id., subd. (c).)

A party may move for summary adjudication as to one or more causes of action within an action. (Code Civ. Proc., § 437c, subd. (f)(1).) A plaintiff moving for summary adjudication bears the initial burden of proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1); *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) If the plaintiff carries that burden, the burden shifts to the opposing party to show that a triable issue of material fact exists as to one or more elements of the cause of action or as to each element of an affirmative defense. (Code Civ. Proc., § 437c, subd. (p)(1); *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 467.)

The moving party's ultimate burden of persuasion that there are no triable issues of material fact never shifts. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Because summary judgment or summary adjudication deprives the opposing party of a trial, the moving party's evidence is strictly construed, the opposing party's evidence is liberally construed, and doubts are resolved in favor of the opposing party. (See's *Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900; *Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830.)

ANALYSIS

Plaintiff argues that section 15(a) of the Receivable Sales Agreement provides that New York law governs disputes arising from the agreement. (Smalbach Decl., ¶ 5 & Ex. A, § 15, p. 11.) Under both New York and California law, a breach of contract claim requires proof of: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damages. (*Kapoor v. AWI Wireless LLC* (N.Y.App.Div. 2018) 159 A.D.3d 1027, 1030; *San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 439.)

Plaintiff has submitted evidence proving each element of its breach of contract claim. On August 29, 2023, Plaintiff and Defendant entered into a Receivable Sales Agreement under which Plaintiff paid \$150,000 in exchange for \$184,500 of Defendant's accounts receivable. (Smalbach Decl., ¶ 4 & Ex. A; SSUMF No. 1.) Defendant agreed to remit 18.69 percent of its weekly receivables, or \$5,125 per week, until Plaintiff collected the full amount sold. (Smalbach Decl., ¶¶ 4, 6 & Ex. A; SSUMF No. 2.)

The agreement required Defendant to maintain an approved account from which Plaintiff could directly debit the weekly payments. (Smalbach Decl., Ex. A.) Defendant also was required to make reasonable efforts to notify Plaintiff if the approved account lacked sufficient funds such that Plaintiff's debits might be rejected for insufficient funds. (*Ibid.*) The agreement further provided that, in the event of a material breach, the remaining balance and all other sums then due and payable would become due. (*Ibid.*)

Plaintiff performed its obligations under the agreement. (Smalbach Decl., ¶ 7; SSUMF No. 3.) Defendant made weekly remittances through February 7, 2024. (Smalbach Decl., ¶ 8 & Exs. A, B; SSUMF No. 4.) Thereafter, Plaintiff's attempts to conduct the scheduled debits failed without prior notice that the approved account lacked sufficient funds or that there had been an adverse change in Defendant's business. (*Ibid.*) Defendant has not made any remittance since February 7, 2024, leaving a balance of \$69,200, plus attorney's fees, interest, and costs. (Smalbach Decl., ¶¶ 8–11 & Exs. A, B; SSUMF No. 5.)

Plaintiff has met its initial burden of proving each element of the third cause of action for breach of contract. Defendant did not file an opposition, and the Court finds no triable issue of material fact based on the evidence submitted or Defendant's operative answer.

Accordingly, Plaintiff's motion for summary adjudication of the third cause of action for breach of contract against Defendant SF Glass Cleaning Solutions is **GRANTED**.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Plaintiff shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

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24-CIV-03087

DANAE MURRAY VS. GOOGLE, LLC

DANAE MURRAY
GOOGLE, LLC

NATHANIEL MARANWE
FELICIA A DAVIS

DEFENDANT GOOGLE, LLC'S MOTION TO COMPEL (1) FURTHER RESPONSES TO ITS DOCUMENT DEMANDS AND (2) RESPONSES TO ITS FORM INTERROGATORIES

TENTATIVE RULING:

For the reasons stated below, Defendant Google LLC ("Google")'s motion for an order compelling further responses to Google's Request for Production of Documents, Set One is **GRANTED IN PART** and **DENIED IN PART**.

The motion as to Google's Form Interrogatories – Employment Law, Set One and Form Interrogatories – General, Set One, is **DENIED AS MOOT**.

BACKGROUND

This is an employment action alleging that Plaintiff's employer, Defendant Google LLC, violated the California Fair Employment and Housing Act and the Equal Pay Act by paying Plaintiff less than white and male colleagues for substantially equal or substantially similar work.

The Court notes that the discovery process has been arduous. After more than one informal discovery conference, Defendant filed the instant motion to compel. Trial is currently set for October 12, 2026.

Defendant seeks three forms of relief:

(1) an order compelling Plaintiff to respond to Form Interrogatories—Employment Law, Set One, and Form Interrogatories—General, Set One;

(2) an order compelling Plaintiff to comply with the Court's October 27, 2025 discovery order by amending her responses to address asserted deficiencies and supplementing her document production accordingly; and

(3) an order deeming Plaintiff's objections to Google's Request for Production of Documents, Set One, waived.

As relevant here, on March 30, 2026, the parties filed a stipulation providing that Plaintiff would not seek emotional distress damages. Plaintiff agreed "to drop and not pursue further any claim for emotional distress damages, including garden variety emotional distress damages, and will not ask the jury or court to award her any damages related to emotional distress at trial." (Stipulation filed Mar. 30, 2026, ¶ 1.) In return, "Plaintiff shall not have to respond to any discovery requests seeking her medical records or medical information." (Id., ¶ 3.)